

COUNTERPARTY RESPONSE LETTER

Reference: RESP-NOVA-2026-04-02

Date: April 2, 2026

From: Nova Logistics Tunisia SARL

To: Atlas Retail Group SARL

Subject: Response to notice of breach and invoice dispute.

1) SLA Position by Nova

- February on-time delivery: 95.3%
- March on-time delivery: 94.8%
- Nova claims force-majeure weather events were counted incorrectly.

2) Invoice Clarification

Invoice INV-NOVA-2026-03 should remain 98,420 TND.

Nova offers temporary credit note of 8,000 TND pending reconciliation.

Nova requests payment of undisputed amount by April 10, 2026.

3) Corrective Measures

- Additional route planner deployment by April 4
- Weekend dispatch controls by April 6
- Joint KPI review proposed for April 8, 2026

4) Legal Position

Nova denies that termination prerequisites are currently met.